



The Undo Button: Speed and the Cost of Going Back

Student copy (project or hand out)

1 The case for moving fast is the easy one to make, and most of it is true. A rule written before anyone knows what it is regulating tends to regulate the wrong thing. Compliance is not free: by 2026 it adds an estimated 10 to 25 percent in extra cost per AI model, and organizations are running an average of eight to ten governance and compliance tools per system, according to industry trackers cited by the law firm Gunder. Harvard Kennedy School researchers describe a compliance trap in which roughly 17 percent of overhead can swing a startup's margin from positive 13 percent to negative 7 percent. [[1]]Speed protects the small builder. Speed keeps the work here rather than in some friendlier jurisdiction. Speed, its defenders say, is just another word for not strangling a thing in the cradle. [[1]] Granted.

2 And then there is the part the speed argument quietly leaves out, which is what happens when the fast decision was the wrong one. Colorado is the cleanest case. In 2024 the state passed a landmark AI law that required developers to use reasonable care against algorithmic discrimination, to keep risk-management programs, and to file annual impact assessments. On May 14, 2026, weeks before those duties were to take effect, Governor Jared Polis signed Senate Bill 26-189 and erased them, replacing the whole regime with something narrower. The duty of care: gone. The impact assessments: gone. A safeguard can be repealed in an afternoon. The harm it was built to catch does not run on the same clock.

3 [[2]]This is the question underneath the noise, and it is older than any of these bills: not how fast we can build, but how easily we can go back. [[2]] Federal agency guidance has started to name it directly. Reversibility and rollback cost are treated as inputs that determine how much autonomy a system gets, the scope of independent action set in proportion to how cleanly its actions can be undone. The logic is plain enough. You hand more rope to the process you can rein in. You hand less to the one you cannot.

4 Read the year through that lens and the headline laws stop looking alike. New York's RAISE Act, signed March 27, asks the largest frontier developers to report a safety incident within 72 hours and backs it with penalties the attorney general can reach, a million dollars for a first violation. California, having pushed its transparency law from January to August to give companies time to build detection tools, will require disclosure that something was made by a machine. Neither freezes the technology. Both leave a thread the public can still pull. [[3]]The federal turn runs the other way: a December executive order set up a task force to challenge state AI laws in court and moved to condition 42 billion dollars in broadband money on states dropping rules Washington finds onerous, and a June order replaced the harder obligations with a voluntary one, inviting developers to notify the government of a new model and offer 30 days of pre-release review if they care to. [[3]] [[4]]Voluntary is faster. Voluntary is also the version you cannot enforce after the fact. [[4]]

5 I do not think the people pulling toward speed are wrong about the cost of caution, and the patchwork they complain about is real: more than 20 states now have their own AI statutes, and over a thousand bills were filed in a single year. A builder genuinely cannot answer to fifty masters. But the answer the velocity argument reaches for, strip the duty, prefer the voluntary, sue the state, is not really an argument about speed at all. It is an argument about who gets to undo things later, and it is busy making sure the answer is no one. The thing about an undo button is that you only learn its worth the moment you need it, and by then it is too late to install one.

6 Maybe both can be had. Maybe a narrow, durable rule that survives contact with a fast-moving field is exactly the thing worth slowing down to write. Colorado may yet replace what it removed; the federal task force may lose in court; the voluntary framework may harden into something with teeth. What I keep coming back to is smaller than any of that. We are deciding, mostly without saying so, how reversible we want this to be, and a decision made that quietly is the one we are least likely to be able to take back.

AP-style multiple choice:

1. In the fifth paragraph, the writer concedes that "the patchwork they complain about is real" before turning against the velocity position. This concession primarily functions to
 - A) strengthen the writer's later objection by showing it survives even after the opposing side's best point is granted
 - B) concede that durable accountability and fast innovation can never coexist in practice
 - C) signal that the writer has abandoned the reversibility argument developed earlier in the passage
 - D) establish that the writer has direct professional experience complying with multiple state laws
2. In the second paragraph, the clipped sentences "The duty of care: gone. The impact assessments: gone" most directly serve to
 - A) provide the legal definitions a reader needs to understand Colorado's original 2024 statute
 - B) soften the writer's stance by treating the repeal as a neutral procedural update
 - C) prove that algorithmic discrimination increased after the duties were removed
 - D) enact the speed of repeal in the prose, so the abruptness of the syntax mirrors how quickly a safeguard can vanish

Discussion questions:

1. The writer reframes the speed-versus-accountability debate as a question of reversibility: "not how fast we can build, but how easily we can go back." Is reversibility a fair way to judge an AI law, or does it smuggle in a bias toward keeping rules that may turn out to be mistakes? Argue using at least one specific framework from the passage.
2. The passage concedes real costs to regulation (the compliance trap, the fifty-masters patchwork) yet still turns against the velocity position. Where in the piece is that turn most persuasive, and where does the concession feel strongest? Point to specific sentences in defending your view.

Writing prompt (Homework or extended in-class, Q3 argument):

The passage argues that the central question in AI governance is not how fast a technology can be built but how easily a decision about it can be reversed, and it warns that prioritizing speed tends to remove the means of undoing mistakes later. Write an essay that argues your position on the extent to which reversibility should govern how societies regulate fast-moving technologies. Use appropriate evidence from your reading, observation, or experience to develop your argument. You may draw on the frameworks discussed in the passage, but you are not required to.